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| Case                                                                            | Title / Nature of Case                                                              |                      |
|---------------------------------------------------------------------------------|-------------------------------------------------------------------------------------|----------------------|
| 2:00 PM - <b>LINE 1</b>                                                         |                                                                                     |                      |
| 20-CLJ-05681                                                                    | RICHARD AVELAR & ASSOCIATES RECONSTRUCTION SERVICES, INC. VS.<br>MOHAMMAD MORTAZAVI |                      |
| RICHARD AVELAR & ASSOCIATES RECONSTRUCTION SERVICES, INC.<br>MOHAMMAD MORTAZAVI | WILLIAM L. COGGSHALL                                                                | PATRICK J. WHITEHORN |

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MOTION TO BE RELIEVED AS COUNSEL

**TENTATIVE RULING:**

The unopposed motion of Patrick J. Whitehorn to be relieved as counsel of record for defendant Mohammad Mortazavi is **GRANTED**.

Pursuant to California Rules of Court, rule 3.1362(e), the order does not become effective until proof of service of a copy of the signed order on the client has been filed with the court.

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2:00 PM - LINE 2

23-CIV-00710

RICHARD TOLENTINO VS 24-SEVEN SENIOR CARE LLC

RICHARD TOLENTINO  
24-SEVEN SENIOR CARE LLC

STEPHEN NOEL ILG  
MICHAEL A. FARBSTEN

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MOTION FOR FINAL APPROVAL OF CLASS SETTLEMENT – FINAL COMPLIANCE HEARING

**TENTATIVE RULING:**

On November 13, 2025, by written order filed November 21, 2025, this court approved the settlement in this Class Action and Private Attorney's General Act (PAGA) matter and the court set a compliance hearing for July 29, 2026.

On July 15, 2026, Mary Butler of Simpluris, Inc. (Simpluris), the settlement administrator, filed a declaration setting forth the work that it performed to disburse the settlement funds, and to comply with its obligations under the settlement agreement and this court's order.

According to Butler's declaration, Simpluris issued the settlement checks to all 120 settlement class members and the time for cashing the checks will expire on September 15, 2026. All other disbursements, for attorneys' fees and costs, the service award to the class representative, the LWDA, and the employer's taxes, have also been made. Butler's declaration states that there are 37 checks, totaling \$11,034.71, that remain uncashed.

As previously ordered, on or after September 16, 2026, Simpluris is to remit the uncashed funds to Legal Aid at Work with instructions that the funds are for use in San Mateo County. Within seven (7) days thereafter, Simpluris is further ordered to file, serve, and email to Department 28 a declaration stating that it has done so. Once this declaration is filed, the case will be fully resolved and will be closed.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, plaintiff's counsel shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, Rule 3.1312 and Local Rule 3.403(b)(iv), and provide written notice of the ruling to all parties who have appeared in this action. The order should be e-filed only, do not email or mail a hard copy to the court.